

**SETTLEMENT AGREEMENT
AND MUTUAL RELEASE**
STRICTLY WITHOUT PREJUDICE AND CONFIDENTIAL

FIRST PARTY	WILBUR WILLIAM MATTHEE, Identity No: 8909035151087, Adult Male, residing at 15 Bellevue Street, Voorbrug, Cape Town, 7001 ("the Claimant")
SECOND PARTY	AFROCENTRIC HEALTH (PTY) LTD (Reg No: 1996/009540/07), a company duly incorporated under the laws of the Republic of South Africa, represented herein by a duly authorised signatory ("the First Respondent")
THIRD PARTY	MEDSCHEME HOLDINGS (PTY) LTD, a company duly incorporated under the laws of the Republic of South Africa, a subsidiary of the First Respondent, represented herein by a duly authorised signatory ("the Second Respondent"; together with the First Respondent: "the Respondents")

RECITALS

The Parties record that:

- A.** The Claimant was employed by the Second Respondent as a Specialist Registered Nurse and Case Manager, commencing 1 May 2024, and resigned on 12 December 2025 under circumstances which he characterises as constructive dismissal and which are disputed by the Respondents.
- B.** The following proceedings are currently pending between the Parties (collectively, "the Disputes"):
- Western Cape High Court — Case No. 2026-086906 (AfroCentric Investment Corporation Limited v Matthee — Rule Nisi / Interim Interdict, operative until 1 March 2027);
 - Labour Court, Cape Town — Case No. 2026-083299 (Matthee v AfroCentric Health (Pty) Ltd & Medscheme Holdings (Pty) Ltd — Constructive Dismissal, Automatically Unfair Dismissal, Unlawful Deduction, PDA Detriment, EEA Discrimination, IP Misappropriation, OHSA);
 - Labour Court, Cape Town — Case No. 2026-077546 (Matthee v AfroCentric Health (RF) (Pty) Ltd — BCEA Section 34 Unlawful Salary Deduction — R14,811.77);
 - CCMA — Case Ref WECT23564-25 and WECT24486-25 (certificates of non-resolution issued 9 January 2026);
 - B-BBEE Commission — Case 5/02/2026; SAPS CAS 705/3/2026; and all regulatory complaints filed with the SAHRC Western Cape, JSE, FSCA, DEL, CMS, SANC, and IRBA arising from the same subject matter.
- C.** The Parties are desirous of resolving all of the Disputes on a full and final basis, without admission of liability by any party, on the terms and conditions set out in this Agreement.
- D.** This Agreement is concluded strictly on a without prejudice basis and without any admission of liability whatsoever by any party. Should this Agreement fail to be implemented in its entirety, neither party shall be prejudiced by the fact of these negotiations, and no terms of this Agreement may be disclosed in any court or tribunal proceedings.

1. SETTLEMENT AMOUNT AND PAYMENT STRUCTURE

In full and final settlement of all claims arising from the Disputes — and all matters set out in Recital B above — the Respondents shall pay to the Claimant the total settlement sum of R4,676,891.34 (Four Million Six Hundred and Seventy-Six Thousand Eight Hundred and Ninety-One Rand and Thirty-Four Cents) ("the Settlement Amount"), structured as follows:

Payment	Amount (ZAR)
Tranche 1 — payable within 5 (five) business days of signature of this Agreement by all Parties	R 2,338,445.67
Tranche 2 — payable within 14 (fourteen) calendar days of signature of this Agreement by all Parties	R 2,338,445.67
TOTAL SETTLEMENT AMOUNT	R 4,676,891.34

1.1 All payments shall be made by electronic funds transfer (EFT) into the Claimant's nominated bank account, details of which shall be provided by the Claimant to the Respondents in writing within 24 hours of signature.

1.2 Time is of the essence in respect of each payment tranche. Any failure to pay within the stipulated period shall constitute a material breach of this Agreement and shall entitle the Claimant to seek immediate enforcement of all original claims in the Disputes, as if this Agreement had not been concluded, without prejudice to any further relief.

1.3 The Respondents shall provide the Claimant with written proof of payment (EFT confirmation slip) within 24 hours of each payment being made.

1.4 The Parties agree and record that the Settlement Amount constitutes compensation for occupational detriment, constitutional damages, loss of income, professional loss, and general damages — and not remuneration. The Respondents shall apply for the appropriate SARS Tax Directive in respect of the Settlement Amount prior to payment. The net amount payable to the Claimant shall in no event be less than the Settlement Amount after tax, and any tax shortfall shall be borne by the Respondents.

2. SIMULTANEOUS LIFTING OF HIGH COURT INTERIM INTERDICT

The Parties record that it is a condition precedent to the full and final settlement — and an obligation of equal force to the payment obligations in Clause 1 — that the interim interdict granted by the Western Cape High Court in Case No. 2026-086906 on 16 April 2026 ("the Order") shall be discharged and set aside simultaneously with the execution of this Agreement, as follows:

2.1 The Respondents' attorneys of record (Deneys Reitz Inc.) shall, simultaneously with the signing of this Agreement by all Parties, file a Notice of Withdrawal of the application in Case No. 2026-086906 and a Consent Order (in the form agreed by the Parties) discharging the rule nisi and setting aside the interim interdict with immediate effect.

2.2 The Consent Order shall be filed with the Registrar of the Western Cape High Court on the same day as signature of this Agreement and shall not be conditional upon payment.

2.3 From the moment of signature of this Agreement, the Claimant shall be relieved of all obligations and restrictions imposed by the Order pending filing of the formal Consent Order. The Respondents irrevocably waive any right to institute contempt proceedings in respect of any act by the Claimant occurring after the date of this Agreement.

2.4 This clause is non-negotiable and constitutes a fundamental condition of settlement. The Claimant shall not be bound by the payment obligations in Clause 1 unless the interdict has been lifted in accordance with this clause.

3. NON-FINANCIAL REMEDIES — MANDATORY CONCURRENT OBLIGATIONS

Simultaneously with the payment of Tranche 1 and the lifting of the interdict, the Respondents shall perform the following remedial obligations:

3.1 CORRECTED CERTIFICATE OF SERVICE: The Respondents shall issue to the Claimant a corrected and legally compliant Certificate of Service reflecting his actual title (Specialist Registered Nurse / Case Manager, NQF Level 8), actual dates of employment (1 May 2024 – 12 December 2025), and actual reason for termination (resignation under protest). This document shall be executed and delivered within 5 business days of signature.

3.2 CORRECTED UI-19 FORM AND UIF ACCESS: The Respondents shall submit a corrected UI-19 form to the Department of Employment and Labour within 5 business days of signature, reflecting the correct remuneration figures and employment particulars, and shall ensure that the Claimant's UIF benefits are no longer blocked by any action or inaction on the Respondents' part.

3.3 SANC RE-REGISTRATION FEES: The Respondents shall pay to the South African Nursing Council (SANC) the full outstanding re-registration fee (R870.00 or such amount as SANC determines) and any applicable penalties directly, within 5 business days of signature, and shall provide the Claimant with

proof thereof. The Respondents acknowledge that their unlawful salary deduction of July 2025 was the direct proximate cause of the Claimant's inability to pay this fee.

3.4 ALL REGULATORY PROCEEDINGS: The Respondents acknowledge that the Claimant retains the right to maintain all existing regulatory complaints (B-BBEE Commission Case 5/02/2026; SAPS CAS 705/3/2026; SAHRC Western Cape; CMS complaint; SANC complaint) insofar as they relate to matters of public interest and systemic governance failure that are distinct from the private employment dispute being settled by this Agreement. The confidentiality provisions in Clause 5 below shall not operate to suppress the Claimant's existing regulatory record.

4. WITHDRAWAL OF COURT AND TRIBUNAL PROCEEDINGS

Subject to and conditional upon full compliance by the Respondents with Clauses 1, 2, and 3 of this Agreement:

4.1 The Claimant shall withdraw, with each party paying its own costs, all court and tribunal proceedings forming part of the Disputes, including Case Nos. 2026-083299 and 2026-077546 in the Labour Court, and all CCMA matters.

4.2 The Claimant shall file the necessary notices of withdrawal within 5 business days of receipt of proof of full and final payment of both tranches of the Settlement Amount.

4.3 No withdrawal shall be filed until both tranches of the Settlement Amount have been received in full and the interdict has been formally discharged. The Claimant shall not be in breach of any court rule or order by reason of delaying withdrawal pending the Respondents' full compliance with their obligations.

4.4 Each party shall bear its own legal costs in respect of all proceedings forming part of the Disputes. No costs order is sought or granted by either party.

5. CONFIDENTIALITY — SETTLEMENT TERMS ONLY

The Parties agree to the following confidentiality arrangement, which is deliberately limited in scope:

5.1 WHAT IS CONFIDENTIAL: The terms of this Agreement — specifically the Settlement Amount and payment structure — shall be kept strictly confidential by all Parties and shall not be disclosed to any third party, save as required by law, regulatory obligation, court order, or professional duty.

5.2 WHAT IS NOT CONFIDENTIAL: The Claimant expressly does not agree to keep confidential the facts underlying the Disputes — including the existence of the Gexus/DMS system integration failure, the unlawful salary deduction of 40.47%, the B-BBEE title suppression, the SANC deregistration, or the regulatory cascade failure. These matters form part of the Claimant's parliamentary submission and public interest record, which the Claimant retains the right to maintain, supplement, and present to Parliament and regulatory bodies.

5.3 PARLIAMENTARY SUBMISSION: The Claimant's parliamentary submission dated 2–3 June 2026, acknowledged by the Office of the Speaker of the National Assembly, is not subject to any confidentiality obligation under this Agreement. The Respondents irrevocably waive any right to challenge, interdict, or seek damages in respect of the Claimant's existing parliamentary submission or any presentation of that submission to Portfolio Committees.

5.4 The Respondents acknowledge that any attempt to enforce confidentiality beyond the scope of Clause 5.1 shall itself constitute a breach of this Agreement and shall entitle the Claimant to be released from all obligations herein.

6. MUTUAL RELEASE AND FULL AND FINAL SETTLEMENT

Upon full compliance by the Respondents with all obligations in Clauses 1, 2, and 3:

6.1 The Claimant releases and discharges the Respondents, their subsidiaries, holding companies, directors, officers, and employees (in their personal and representative capacities) from all claims, demands, actions, and proceedings arising from the Disputes and the employment relationship, whether known or unknown at the date of this Agreement.

6.2 The Respondents release and discharge the Claimant from all claims, demands, counterclaims, and proceedings arising from the Disputes, including any threatened defamation claim, claim for costs, or contempt proceedings.

6.3 The mutual release shall take effect upon the Claimant's written confirmation to the Respondents' attorneys that full payment of both tranches of the Settlement Amount has been received.

6.4 This release does not affect: (a) the Claimant's regulatory complaints insofar as they concern matters of public interest distinct from his private employment dispute; (b) the parliamentary submission; or (c) any rights arising from a breach of this Agreement itself.

7. BREACH AND ENFORCEMENT

In the event of any material breach of this Agreement by the Respondents:

7.1 The Claimant shall provide written notice of breach to the Respondents' attorneys of record (Deneys Reitz Inc., Ref: AFR1282) by email to jason.whyte@deneys.co.za, affording 48 hours to remedy the breach.

7.2 If the breach is not remedied within 48 hours, this Agreement shall be void and of no effect, and the Claimant shall be entitled to reinstate all claims in the Disputes as if this Agreement had not been concluded, and to pursue any further relief as may be competent, including but not limited to a Writ of Execution in respect of this Agreement.

7.3 The Claimant's rights in this clause are in addition to, and not in substitution for, any other remedy available in law.

8. GENERAL PROVISIONS

8.1 GOVERNING LAW: This Agreement shall be governed by and construed in accordance with the laws of the Republic of South Africa. Any dispute arising from this Agreement shall be determined by the Labour Court of South Africa, Cape Town.

8.2 WHOLE AGREEMENT: This Agreement constitutes the entire agreement between the Parties relating to the subject matter hereof and supersedes all prior negotiations, representations, and understandings, whether oral or written.

8.3 AUTHORITY: Each signatory warrants that he or she is duly authorised to sign this Agreement on behalf of the party represented.

8.4 NO VARIATION: No amendment or variation of this Agreement shall be of any force or effect unless reduced to writing and signed by all Parties.

8.5 SEVERABILITY: If any provision of this Agreement is found to be unenforceable, the remaining provisions shall continue in full force and effect.

8.6 COUNTERPARTS: This Agreement may be signed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures (including PDF) shall be of equal force to original wet signatures.

8.7 COSTS: Each party shall bear its own legal costs incurred in the negotiation and conclusion of this Agreement.

SIGNED BY THE PARTIES

For and on behalf of the CLAIMANT: WILBUR WILLIAM MATTHEE _____ Signature _____ Date	For and on behalf of the RESPONDENTS: AFROCENTRIC HEALTH (PTY) LTD & MEDSCHEME HOLDINGS (PTY) LTD _____ Signature (duly authorised) _____ Date
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WITNESSES

Witness to Claimant's signature: _____ Signature / Full Name / Date	Witness to Respondents' signature: _____ Signature / Full Name / Date
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IMPORTANT LEGAL NOTE

This Settlement Agreement is provided as a working draft for negotiation purposes. It has been prepared by EthicHawks Forensic Governance & Compliance Consultancy.